IN THE NATIONAL COMPANY LAW TRIBUNAL: NEW DELHI
SPECIAL BENCH (COURT – II)

Item No. 201
CP(CAA)-58/ND/2023

IN THE MATTER OF:
Venkatesh Infra Project Pvt. Ltd. and Venkatesh Steel Infra Pvt. Ltd. ... **Applicant/Petitioner**

Under Section: 230-232

Order delivered on 27.10.2023

CORAM:
SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)
DR. SANJEEV RANJAN, HON'BLE MEMBER (T)

PRESENT:
For the IT Dept. : Ms. Basayar Khan, Adv on behalf of Mr. Aseem Chawla, Sr. Standing Counsel

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

The present petition has been preferred for sanction of Scheme of arrangement of Venkatesh Infra Projects Private Limited (Petitioner No. 1/Demerged Company) with Venkatesh Steel Infra Private Limited (Petitioner No. 2/Resulting Company) Under Section 230-232 of Companies Act, 2013.

The present petition is a second motion petition under Section 230-232 of the Companies Act, 2013. The Scheme of arrangement is espoused under Section 230 to 232 and other applicable provisions of the Companies Act, 2013 for demerger qua the aforementioned companies to achieve the objects mentioned in the scheme of arrangement.

Heard. Issue notice to the RD, RoC, Income-tax authorities, RBI, SEBI and other sectoral regulators or authorities which are likely to be affected by the compromise or arrangement. The representations, if any, by the noticee shall

be made within a period of thirty days from the date of receipt of the notice, failing which, it shall be presumed that they have no representations to make on the proposals.

Ld. Counsel for the Petitioner undertakes to serve notice upon the authorities/offices referred to hereinabove by all modes viz. registered post, speed post and E-mail. Affidavit of service be filed within one week. The petitioner shall also make all the documents referred to in Section 230(3) of the Companies Act, 2013 viz., a statement disclosing the details of the compromise, arrangement, a copy of the valuation report, if any, and their effect on creditors, key managerial personnel, promoters and non-promoter members, and the debenture-holders and the effect of the compromise or arrangement on any material interests of the directors of the company or the debenture trustees, if any, to the authorities referred to hereinabove. The documents as also a copy of the notice to be served in terms of the present order upon the authorities (ibid) shall also be placed on the website of the company, if any, and shall also be published in two newspapers viz., Business Standard (English language-Delhi Edition); and Business Standard (Hindi language- Delhi Edition) in circulation in the locality/state where the registered offices of the petitioners are located.

List on 08.12.2023.

Sd/-
(SANJEEV RANJAN)
MEMBER (T)

Sd/-
(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

(Ashima)